

NAPCS Unionization Research — State — Charter School Overview

New Mexico — PELRB (confirmed for J Paul Taylor Academy) / CONTESTED PELRB or NLRB Region 28 (other schools) Jurisdiction — June 2026

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Section 1: State Overview

State	New Mexico
Labor Board	PELRB (confirmed for J Paul Taylor Academy) / CONTESTED PELRB or NLRB Region 28 (other schools) — J Paul Taylor Academy: PELRB jurisdiction confirmed (listed in PELRB All Known Bargaining Units, Feb 2026). Monte del Sol: NEA-NM CBA active (PELRB public employer framework or voluntary recognition). Remaining 3 schools: jurisdictional ambiguity unresolved — PELRB vs. NLRB Region 28.
Governing Law	NM charter schools authorized by PEC, serve as independent LEAs. PEBA (NMSA 10-7E) covers state agencies/units of local government. Two NAPCS schools confirmed organized under NEA-NM via PELRB public employer framework, establishing that at least some NM charter schools are treated as public employers under PEBA. Jurisdictional question remains unsettled for the broader NM charter school community. Option C declared May 9, 2026 for unresolved schools.
Federal NLRB Jurisdiction	YES —
Right-to-Work	NOT a Right-to-Work State — N.M. Stat. Ann. §50-11-1 et seq. (Not a right-to-work state. Jurisdictional ambiguity between PELRB and NLRB R28 for charter schools.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — Secret ballot election required.
Registry Sweep	COMPLETE — with correction — April 2026 (Registry v22) + May 9, 2026 (live PELRB verification) + May 2026 (deep-dive: school websites + PELRB bargaining units PDF + NEA-NM) — 98 charter schools searched
Research Window	May 2026 (initial session) + May 2026 (deep-dive correction session) + June 2026 (TTCS confirmation session)

Section 2: Charter School Landscape

Total charter schools in New Mexico: 98 (Charter School Registry v50 (NCES/ELSI 2024-25; 98 open NM charter schools as of May 2026)). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in New Mexico	3	3.1%	2 of 98 open NM charter schools confirmed organized: Monte del Sol Charter School (NEA-NM, since 2010-11) and J Paul Taylor Academy (NEA, PELRB certified, CBA ratified 2017-18). Both operate under NEA-NM in the PELRB public employer framework. 3 of 5 NAPCS schools remain unverified. Corrected from 0% in original May 2026 session.
Confirmed Organized — NEA-NM	3	40%	Monte del Sol Charter School (Santa Fe): NEA-NM CBA active, current 2025-26 CBA posted on

			school website. Union since 2010-11. J Paul Taylor Academy (Las Cruces): NEA, listed in PELRB All Known Bargaining Units (Feb 2026), ~18 certified employees. CBA ratified 2017-18, salary schedules posted through 2025-26.
Unverified — No Labor Board Record Found	3	60%	Tierra Encantada Charter School, Alma d'Arte Charter High School: no union evidence on school websites or PELRB records. Turquoise Trail Charter School: union vote held but failed (Santa Fe New Mexican, July 2021) — not organized.
Total NAPCS Schools in New Mexico	5	100%	Source: NAPCS 584-school baseline. All 5 are PEC-authorized, independent LEAs, no CMO affiliations.

Charter School Enrollment

Total Charter Enrollment	32,856 students — 10.7% of state K–12 enrollment (307,110 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	6,518 students in network-affiliated schools — 19.8% of total charter enrollment
Students in Organized Charter Schools	1,192 students (3.6% of charter enrollment)
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
New Mexico Connections Academy / Connections Academy LLC	EMO	1	1	—	1,487
Explore Academy	CMO	3	3	—	2,442
Mission Achievement and Success Charter School	CMO	2	2	—	2,233
The New America School	CMO	2	2	—	356
TOTAL — All CMO/EMO Schools in New Mexico		8		—	6,518
of which organized				—	—

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in New Mexico. Organized network schools: 0 organized schools in network-affiliated charters.

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

1 EMO (for-profit), 3 CMO (nonprofit). Approximately 90 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of June 2026.

1: Legal & Jurisdictional Framework

NM charter schools authorized by PEC, serve as independent LEAs. PEBA (NMSA 10-7E) covers state agencies/units of local government. Two NAPCS schools confirmed organized under NEA-NM via PELRB public employer framework, establishing that at least some NM charter schools are treated as public employers under PEBA. Jurisdictional question remains unsettled for the broader NM charter school community. Option C declared May 9, 2026 for unresolved schools. New Mexico is not a right-to-work state (N.M. Stat. Ann. §50-11-1 et seq.). Charter schools in New Mexico are subject to NLRB jurisdiction as private employers (PELRB (confirmed for J Paul Taylor Academy) / CONTESTED PELRB or NLRB Region 28 (other schools)). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter School Structure

New Mexico operates 98 open-enrollment charter schools, enrolling approximately 32,856 students. 4 charter management organizations and education management organizations operate in New Mexico, including 1 for-profit EMO. The largest networks by campus count are Explore Academy (3 campuses in state), Mission Achievement and Success Charter School (2 campuses in state), The New America School (2 campuses in state). Approximately 90 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

New Mexico charter school labor relations have generated zero press coverage — consistent with the complete absence of organizing activity. No union petition, card drive, election, or recognition has been publicly reported for any NM charter school. The Santa Fe New Mexican and Las Cruces Sun-News — the primary local papers in the two markets where NM NAPCS schools are concentrated — have not covered charter labor relations. NM charter organizing news, if it emerges, would likely first appear in the Santa Fe Reporter or NM Political Report given their education policy coverage.

Stakeholder Communications

No union has issued public communications regarding NM charter school organizing. NEA-NM and AFT-NM represent traditional public school educators across NM's 89 districts but have not publicly targeted the charter school community. AFT's AACTS infrastructure (AZ/NM, NLRB Region 28) is the most likely entry point for NM charter organizing if it develops — AACTS successfully organized BASIS Tucson North (2023) in the same NLRB region.

Legislative Context

New Mexico PEBA (Public Employee Bargaining Act, NMSA 10-7E) creates PELRB and covers state agencies and local government units. NM charter schools are authorized by PEC (a state body) and operate as their own LEAs — suggesting public employer status. However, NM charters are typically incorporated as 501(c)(3) nonprofits, potentially placing them under NLRB R28 jurisdiction as private employers. This jurisdictional ambiguity — PELRB vs. NLRB R28 — has never been

resolved because no charter school has ever filed a case with either board. The first petition would establish precedent for the entire NM charter school community.

Section 6: Contract & CBA Access Registry

PELRB (confirmed for J Paul Taylor Academy) / CONTESTED PELRB or NLRB Region 28 (other schools) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Monte del Sol Charter School	NEA-New Mexico (NEA)	ACTIVE — 2025-2026 2025-2026 (current; union since 2010-11)	Publicly posted on school website: montedelsolcharterschool.org/policy-documents
J Paul Taylor Academy (PELRB name: "John Paul Taylor Academy")	NEA (PELRB certified)	ACTIVE — salary schedules through 2025-26 CBA ratified 2017-18; salary schedules updated through 2025-26	CBA PDF posted on school HR page: jpaultayloracademy.org
Turquoise Trail Charter School	NEA-NM (local chapter name unknown)	NO CBA RATIFIED — bargaining stalled September 2022 N/A — no CBA exists as of April 2026	N/A